

22NWCV00645 22NWCV00645

County: los-angeles

Division: Civil Law and Motion

Department: R

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AGUILA v. SHABANI, ET AL.

CASE NO.: 22NWCV00645

HEARING: Thursday, July
16, 2026, at 9:00 AM

Defendant MERCURY BOWL's Motion to Strike Plaintiff HENRY
AGUILA's First Amended Complaint is GRANTED without leave to amend.

Moving Party to give notice.

Background

On July 27, 2022, Plaintiff HENRY AGUILA filed this breach
of contract action against Defendants JOSEPH SHABANI; KAMYAR D. SHABANI;
MERCURY BOWL LLC; GREEN RIVERA LLC; PICO RIVERA HOLDINGS LVT LLC and DOES 1
through 100, inclusive.

Plaintiff's Complaint alleges the following causes of
action:

(1) Breach
of Contract;

(2) Breach

of Covenant of Good Faith and Fair Dealing; and

(3) Negligence

On December 1, 2022, the Court GRANTED Defendants JOSEPH SHABANI; KAMYAR D. SHABANI; MERCURY BOWL, LLC; GREEN RIVERA, LLC; and PICO RIVERA HODLINGS LVT, LLC's Demurrer to Plaintiff's Complaint. The Court did not grant Plaintiff leave to amend and stayed the action pending the disposition of Plaintiff's claims in Case No. 21NWCV00144. On March 23, 2026, the Court lifted the stay.

On March 27, 2026, Plaintiff filed a First Amended Complaint.

On May 1, 2026, Defendants MERCURY BOWL LLC and GREEN RIVERA LLC ("Defendants") filed the instant Motion to Strike, with Defendants JOSEPH SHABANI; KAMYAR D SHABANI; and PICO RIVERA HOLDINGS LVT LLC filed a joinder to Defendants' Motion to Strike.

Discussion

A motion to strike

lies either when (1) there is "irrelevant, false or improper matter inserted in any pleading"; or (2) to strike any pleading or part thereof "not drawn or filed in conformity with the laws of this state, a court rule or order of court." (CCP §436.)

A plaintiff may only amend a pleading as a matter of course before an answer or demurrer is filed or before trial of the issue of law raised in the demurrer; after any of those things happens, 'the plaintiff's right to amend as a matter of course is gone.'" (State Farm Fire & Cas. Co. v. Diblin (2025) 114 Cal. App. 5th 1245, 1262 n.3 (quoting Loser v. E.R. Bacon Co. (1962) 201 Cal. App. 2d 387, 389).) Thereafter, Plaintiff must seek the Court's permission to amend their pleading. (Ibid.)

On December 1, 2022, the Court sustained Defendants Demurrer to Plaintiff's Complaint. In doing so, the Court did not grant Plaintiff leave to amend. Nor did Plaintiff have a right to amend his Complaint as a matter of course. Therefore, Plaintiff's First Amended Complaint does not

conform with the laws of this state and must be stricken.

Defendant's Motion to Strike is GRANTED.

Plaintiff's First Amended Complaint is STRICKEN.